Montgomery County District Court

Cause No. 2024-CV-0027

Emily Johnson, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Defendant's Original Answer

Date:	7-14-24
Counsel for defendant:	Marilyn Fox, Ashford & Lyle LLP

Defendant denies each and every allegation contained in Plaintiff's Original Petition, and demadns strict proof thereof as required by the Texas Ruels of Civil Procedure. Pursuant to Rule 92, Defendant generally denies the allegations and requests that Plaintiff be required to prove the charges and allegations against Defendant by a preponderance of the evidence.

For further answer, and without assuming any burden of proof that the law plcaes on Plaintiff, Defendant asserts the following affirmative defenses.

First, Plaintiff's own negligence proximately caused or contributed to the collision. Plaintiff failed to keep a proper lookout, failed to yield the right-of-way to oncoming traffic, and failed to timely perceive and avoid the vehicle that Plaintiff now claims was a cause of the incident. Under Chapter 33 of the Texas Civil Practice and Remedies Code, any recovery must be reduced by the percentage of responsibility attributed to Plaintiff.

Second, the collision was caused in whole or in part by the acts or omissions of a third party over whom Defendant had no control, and Defendant requests that the trier of fact assign responsibility to all responsible persons under Section 33.004.

Third, Plaintiff failed to mitigate damages by failing to follow reasonable medical advice and by incurring treatment that was not reasonable or necessary. Defendant reserves the right to amend this answer as discovery proceeds.